

Shilpa vs Kamlesh

Author: Mohinder Pal

Bench: Mohinder Pal

SCA/15006/2011 4/ 4 JUDGMENT

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

SPECIAL
CIVIL APPLICATION No. 15006 of 2011

For
Approval and Signature:

HONOURABLE
MR.JUSTICE MOHINDER PAL

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1

Whether

Reporters of Local Papers may be allowed to see the judgment ?

2

To be

referred to the Reporter or not ?

3

Whether

their Lordships wish to see the fair copy of the judgment ?

4

Whether

this case involves a substantial question of law as to the interpretation of the constitution of India, 1950 or any order made thereunder ?

5

Whether

it is to be circulated to the civil judge ?

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SHILPA

D/O MANHARLAL JAIN W/O KAMLESH SHOBHALAL SHAH - Petitioner(s)

Versus

KAMLESH
SHOBHALAL SHAH - Respondent(s)

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Appearance
:
MR
AMIT N PATEL for
Petitioner(s) : 1,
RULE SERVED for Respondent(s) : 1,
MR JAL
SOLI UNWALA for Respondent(s) :
1,
=====

CORAM

:

HONOURABLE

MR.JUSTICE MOHINDER PAL

Date
: 11/01/2012

ORAL
JUDGMENT

1. This is Special Civil Application under Articles 226 and 227 of the Constitution of India against the order passed by the Principal Civil Judge, Valsad vide which the application of the petitioner under section 24 of the Hindu Marriage Act, 1955 (hereinafter referred as "the Act") has been dismissed.
2. In a pending petition filed by the husband seeking the divorce, wife - present petitioner moved an application under section 24 of the Act seeking maintenance on the ground that she has no source of independent income, while her husband had an income of Rs.1 lac per month. She prayed for maintenance at the rate of Rs.25,000/- per month and Rs.50,000/- expenses of proceedings. The trial Court partly allowed the application directing respondent husband to pay Rs.10,000/- towards the expenses of litigation, however, denied any maintenance pendente lite on the ground that the applicant is already allowed Rs.4000/- per month in a separate proceedings under section 125 of the Cr.P.C. Aggrieved from this order of the court below, the present Special Civil Application has been preferred.
3. Notice of rule of this petition has been served upon the respondent who has contested the same through his counsel.
4. Learned counsel for the petitioner has laid emphasis on the point that provisions under section 125 of the Cr.P.C. stand on different footing and maintenance can be granted under section 125 of the Cr.P.C. as well as section 24 of the Act. According to him, the trial Court has committed an error by holding that once maintenance under section 125 of the Cr.P.C. has been allowed, the maintenance under section 24 of the Act cannot be allowed.
5. I have heard learned counsel for the parties and have gone through the papers placed before me.
6. It is settled proposition of law that an order under section 125 of the Cr.P.C. is in the nature of a final order and an order rendered under the provisions of section 24 of the Act remains in force only during the pendency of the litigation between the parties. The maintenance granted under section 24 of the Act is admittedly a measure to provide support to the spouse who is found to have no independent income sufficient for her support and for necessity expenses of the proceedings. Since both the provisions deal with different situations, the maintenance under section 24 of the Act can be granted even if the spouse has been getting maintenance under section 125 of the Cr.P.C.
7. It is pleadings of the petitioner that respondent husband is having income of Rs.1 lac per month. There is no denial from the husband in this regard. Under the circumstances, the petition is partly allowed. Keeping in view the averments made by the petitioner, the fact that husband has not denied the averments regarding income, the ends of justice will be met by granting maintenance pendente lite to the tune of Rs.4500/- per month. The amount of Rs.4000/- per month granted to the petitioner under section 125 of the Cr.P.C. shall be adjusted in this amount. The petitioner shall be entitled to this amount from the date she moved an application under section 24 of the Act in the court below. Arrears etc, shall be paid to the petitioner within one month from the date of receipt of

a copy of this order by the trial Court. Registry is directed to send a copy of this order to the Court below. Rule is made absolute to the aforesaid extent only. No costs.

(Mohinder Pal,J) pathan